

25VECV01157 25VECV01157

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-10

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Case Number: 25VECV01157 Hearing Date: July 10, 2026 Dept: T

VALERII HONCHARENKO 25VECV01157 TENTATIVE 7 10 2026

A. The orders

all discovery and proceedings re collection of sanctions stayed. It is taking too much of the parties' and court's time and resources over a few hundred dollars when there should be focus on obtaining substantive discovery concerning this case. All discovery and collection proceedings concerning sanctions and reimbursements are stayed pending further order of the court.

B. The

service requirements between plaintiff and Mr. Zeven do not apply to other parties in this case.

C. The court finds that there is a

need to issue a protective order concerning Consilio. This order applies to all parties in this case.

Neither plaintiff nor defendants may seek any of the extracted information from Anzhela Honcharenko's phone from Consilio either informally or in discovery without prior order of the court.

Consilio and its attorneys may not provide anyone with the extracted data from Anzhela Honcharenko's phone without prior court consent. To the extent this may have already happened, Consilio's counsel must inquire from their client and report to the court what was disclosed, to whom, and when. Consilio's counsel must do the same. This applies to disclosures other than disclosures per court order made directly to Ms. Honcharenko's counsel or to Ms. Honcharenko in her case in 2024.

MOTIONS:

1. Plaintiff's

motion to quash service of process: Moot.

The court acquired jurisdiction over plaintiff at the hearing on June 8, 2026. No sanctions for this hearing.

2. Plaintiff's

motion for protective order re enforcement of \$750 sanction: This pertains to a motion to quash a deposition subpoena to Raya Taver, Inc. There is no \$750 sanction. That was vacated by order on 12/19/2025. There is a \$60 filing fee reimbursement order only. See order of 10/10/2025. Plaintiff has provided evidence it was paid.

There are sanctions are the \$860 sanctions concerning the Mercury subpoena. See order of 12/19/2025.

To the extent that defendant filed an opposition and a "separate statement" which is not authorized, the court disregards and strikes the separate statement.

No sanctions for this hearing.

The court grants judicial notice of the court's own orders only. Tentative rulings are not orders and should never be cited. The court will take judicial notice of documents filed with the court but not hearsay contained within it.

3. Plaintiff's

motion for protective order re scope of discovery: Grant in full. Plaintiff has limited his claim to the following (See Reply, page 4):

"Plaintiff seeks: (1) economic damages for safety-related relocation expenses; (2) economic damages arising from the spouse's loss of wages; (3) non-economic damages, including emotional distress, anxiety, fear, invasion of privacy, and harm to personal and family life; and (4) punitive damages according to proof at trial. Plaintiff does not seek vehicle-replacement expenses, therapeutic-travel expenses, similar out-of-pocket costs, or any other withdrawn category. (Ex. E, Mar. 15, 2026 Notice of

Withdrawal.)" Accordingly, the

scope of discovery shall be limited to these issues. Discovery already propounded cannot be propounded again.

The defendant is limited to statutory supplemental discovery. Monetary sanctions awarded in favor of plaintiff against defendant in the amount of \$250 plus \$60 filing fee for a total of \$310 payable by defendant to plaintiff at his address of record by 7/31/2026 pursuant to CCP section 2023.010 for discovery abuse without substantial justification.

The court issues the following protective order:

- Prohibiting Defendant from propounding duplicative, cumulative, or harassing discovery, including duplicative Form Interrogatories;
- Striking Form Interrogatories, Set Three, to the extent they are duplicative, cumulative, or seek information outside the scope of damages claimed;
- Limiting Requests for Admission, Set Two for a total number of RFAs of 35 for the case.
- Limiting Requests for Production, Sets Two and Three, to the damages claimed by plaintiff in this case;
- Limiting discovery as to information of plaintiff's spouse and daughter only as directly relevant to plaintiff's claim for damages
- Defendants may not propound further Form Interrogatories without prior leave of Court;
- Any remaining discovery is reset so that Plaintiff has 30 days from the Court's ruling to respond including object.

4. Non-party

Anzhela Honcharenko's motion to quash: Moot.

The court acquired jurisdiction over plaintiff at the hearing on June 8, 2026. No sanctions for this hearing.

5. Plaintiff's

motion for protective order limiting discovery to Toyota and Mazda: Grant. No

documents may be sought by defendant. If any documents were produced to defense counsel by Toyota or Mazda, they are to be sent without retaining any copies to plaintiff by mail. No sanctions.

6. Defendant's

motion for protective order regarding ESI: Denied. There is no reasonable basis for ESI in this case. There will be no forensic extractions. Consilio and its counsel may not produce any extracted data from Ms. Honcharenko's phone without prior order of the court.

7. Defendant's

motion for alternative service of judgment debtor examination orders and third party orders: Denied. Alternative service is not merely for convenience. Difficulty in service per se is not good cause.